

ORDER NO: W2024-000472

THE RESIDENTIAL TENANCIES BRANCH

BETWEEN:

Franck Foua Moukoko
Tenant

and

Thorwin Properties
Landlord

ORDER

ADDRESS OF RENTAL UNIT:

The Residential Tenancies Branch held a hearing on January 26, 2024.

Appearances: Tenant Yes Landlord Yes

By authority of Section 154 of The Residential Tenancies Act, the director orders that:

The tenant's claim does not succeed and no compensation or costs are awarded.

February 7, 2024

Date

J. Thorne-Finch

Residential Tenancies Officer

If you want to appeal this Order you must apply to the Residential Tenancies Commission, 1650 - 155 Carlton Street, Winnipeg MB R3C 3H8 in person or by mail (telephone: 204-945-2028, toll-free: 1-800-782-8403, fax: 204-945-5453) no later than February 26, 2024. The filing fee is \$50.00, payable in cash, certified cheque or money order to The Minister of Finance when the appeal is filed. You must file a copy of this Order with your Notice of Appeal. An appeal suspends the Branch's Order.

This Order, including the Reasons for Decision, is a matter of public record.

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REASONS FOR DECISION

The Residential Tenancies Act and tenancy agreements set out responsibilities for landlords and tenants. Section 55 of the Act says that when someone violates those responsibilities and causes a financial loss to the other party, then he or she must compensate the other party for the loss. Sections 152 and 154 of the Act say the Branch has authority to make decisions and orders in disputes between landlords and tenants. The tenant filed a claim with the Residential Tenancies Branch. The Branch held a hearing on January 26, 2024. The tenant and landlord's agent participated in the hearing.

Preliminary Issue: Translation

At the beginning of the hearing, the tenant said that he had requested French language translation. There is no record of any such request by the tenant. The Hearing Officer gave the tenant the opportunity to adjourn the hearing in order to make arrangements for a French interpreter to attend and assist the tenant. The tenant declined and elected to proceed with the hearing in English.

TENANT'S CLAIM:

Loss of Personal Property: \$3,000.00

Total: \$3,000.00 plus costs.

LOSS OF PERSONAL PROPERTY:

The tenant claimed \$3,000.00 for the loss of personal property. The tenant has the burden of proof and must prove that the landlord caused him to suffer the losses alleged. The tenant testified that he moved out of the unit at the end of October 2023. He said he remained in the unit cleaning until 6:30AM on the morning of November 1, 2023. He said he left behind some of his possessions in several common areas of the rental complex, as well as outside the back door as he was unable to transport it all with him in one trip. He said he returned several hours later to find these possessions missing. He said he saw some of the property in the garbage but some he never saw again.

The tenant provided no evidence to corroborate any of this, such as photographs, witness statements or notes taken contemporaneously to the alleged events. The tenant did not provide any evidence to establish the dollar value, if any, of the loss suffered.

The landlord's agent said that after the tenant complained to them about this they conducted inquiries. The building caretaker reported to the landlord's main office finding some items "scattered around" inside by the rear exit of the building. The landlord provided a November 3, 2023 email from the caretaker listing these items. The descriptions of at least some of these items appear consistent with the tenant's descriptions of his property. These included an "old mop old broken broom old toilet seat mega old laptop that said "free/does not work properly", some empty cleaning containers in a black bucket and odd shoes... too me it looked like stuff left over from a move out that was discarded or just simply left behind. Nothing of great value!!!!" [sic]

The caretaker added that "outside was also some [text deleted] with blue arm sleeves and smock tops, broken glass, broken lamp, just a lot of odds and ends !!! There was nothing notifying to the public that it is stored outside "Do Not Touch!!!! Nor any instructions that a

tenant was going to leave his belongings outside all night long." [sic]

The caretaker added "Later that afternoon I noticed more stuff outside and discarded that too, 4 wheel rims, small kids table and 4 small tike chairs, old pole lamp and lots of odd socks shoes and garbage." The caretaker went on to write "seriously thought the storage unit was just emptied out with leftover stuff !!! [...] I'm sorry for the confusion and mishap, I didn't do it intentionally, I was just cleaning up." [sic]

Based on this email, it appears that the landlord's caretaker disposed of at least some of the property the tenant alleges he lost. It is not clear whether the caretaker disposed of merely some or all of the property or if unknown third parties may also have been responsible for the loss of some of the items.

In order to adjudicate the present claim I consider the testimony of the parties, their evidence and the applicable legal principles. In order to determine whether the landlord ought to be held responsible for this I must also assess the reasonableness of the actions of the relevant parties in the circumstances.

I consider that there is no evidence that the tenant ever told anyone that he was storing his property in the areas near the back door of the building. I also consider that there is no evidence the landlord's agents ever guaranteed they would guard or otherwise look after the tenant's property. I furthermore consider the statements of the caretaker. The caretaker described items that a reasonable person could conclude were abandoned items, were of no value, or were otherwise fit to be disposed of.

The tenant provided no evidence proving that the items he left behind were obviously property of sufficient value that further investigation by the caretaker was reasonably necessary in the circumstances before the disposing of them. The email, prepared contemporaneously by the caretaker, sets out that the nature of the items, their condition and above all their reckless manner of storage led the caretaker to believe that they had been abandoned. In the absence of evidence from the tenant proving this was an objectively unreasonable conclusion to draw, I am not persuaded that the tenant has demonstrated that the caretaker's actions were so negligent that the landlord ought to be held liable for the loss of his property.

The tenant stored property in unsecured areas both inside and outside the rental complex. The tenant did not prove he communicated this to the landlord or sought any guarantee from the landlord that they would take responsibility for his possessions. The tenant has not proved that the caretaker's actions disposing of at least some of his property was objectively unreasonable in the circumstances. I am not satisfied the tenant has established the landlord's responsibility such that compensation is justified. The tenant's claim does not succeed.

COSTS:

The tenant claimed the costs to file, serve, prove and enforce the claim. Section 154(1) of the Act gives the Branch the authority to award costs. As the tenant's claim does not succeed, I do not award costs.

SUMMARY:

The tenant's claim does not succeed and no compensation or costs are awarded.

February 7, 2024

Date

J. Thorne-Finch

Residential Tenancies Officer